

ONTARIO
SUPERIOR COURT OF JUSTICE

B E T W E E N:

MICHAEL CHINSANG

Plaintiff

- and -

CHRISTOPHER BRIDSON

Defendant

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) R. Vinett, for the plaintiff
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) K. Smith, for the defendant
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) **HEARD:** November 20, 2008

HOWDEN, J.

[1] This is a ruling on a motion by the defendant Christopher Bridson for an order that the injuries suffered by the plaintiff are too remote to allow recovery. This motion was brought after the jury's verdict. The jury questions and answers on negligence (including causation) are as follows:

1. Was there any negligence on the part of the defendant Christopher Bridson?

Answer: Yes

2. Was the motor vehicle accident of April 2, 2001 the cause of the injuries and/or mental condition(s)?

Answer: Yes

3. What injuries and/or mental condition(s) did Michael Chinsang sustain as a result of the accident?

Answer: Neck, chest, arm, leg, back, head, memory loss, elevated/increased anxiety, increased depression, arranging/processing of information i.e. deficiencies.

4. At what amounts do you assess the plaintiff's damages for the injuries and/or mental condition(s) caused by the accident?

General Damages (pain and suffering)	\$150,000.00
Special Damages (past loss of income)	43,000.00
Special Damages (future loss of income/loss of earning capacity)	
	800,000.00

5. Regardless of your answers to the above questions, at what amounts do you assess the plaintiff's damages?

General Damages (pain and suffering)	\$150,000.00
Special Damages (past loss of income)	43,000.00
Special Damages (future loss of income/loss of earning capacity)	
	800,000.00

[2] A recent case on the application of the remoteness doctrine is *Mustapha v. Culligan of Canada Limited* (2008) S.C.C. 27. At paragraph 3, the essential elements of negligence are set out:

- (1) the defendant owed the plaintiff a duty of care;
- (2) the defendant's behaviour breached the standard of care;
- (3) the plaintiff sustained damages, and
- (4) the damages were caused, in fact and in law, by the defendant's breach.

[3] Mr. Smith submitted on the defendant's behalf that the Supreme Court of Canada in *Mustapha* established the test for determining whether the damages were caused in law by the defendant's breach at paragraph 18 – that is, whether it was foreseeable that a person of ordinary fortitude would suffer the serious injuries suffered by the plaintiff from the motor vehicle collision of April 2, 2001. It is for the plaintiff to meet this test.

[4] The question of remoteness was characterized by McLachlin, C.J. as a question of law (*Mustapha*, at para. 11):

The fourth and final question to address in a negligence claim is whether the defendant's breach caused the plaintiff's harm in fact and in law. The evidence before the trial judge establishes that the defendant's breach of its duty of care in fact caused Mr. Mustapha's psychiatric injury. We are not asked to revisit this conclusion. The remaining question is whether that breach also caused the plaintiff's damages in law or whether they are too remote to warrant recovery.

[5] Remoteness is therefore an issue of law to be determined by the trial judge. Causation is a question of fact for the jury. But whether the nature of the injuries, their relation to the tortious act, and the damages awarded are too remote is for the trial judge to determine as a matter of law. Mr. Smith submits, relying on *Mustapha* and *Enge*¹, that it is for the trial judge now to determine whether the damages found by the jury were caused by the defendant's negligence in law.

[6] Mr. Smith submits that, because I as the trial judge heard the same evidence as the jury, I can and should determine the legal issue of remoteness at the end of the trial. He cited the evidence of Dr. Waisman, Dr. Young, Dr. Van Reekum and Dr. Fulton to the effect that development of lasting cognitive deficits and psychoses from a minor traumatic brain injury represents either a finding of schizophrenia unrelated to the motor vehicle accident, or it is so uncommon and rare as to be too remote to allow recovery. Dr. Waisman testified that he had never seen a case where a minor brain injury led to lasting depression or psychosis.

[7] Mr. Smith submits that it is not foreseeable that a person of normal fortitude would suffer psychosis resulting from a motor vehicle collision nor would he suffer a significant continuing career deficit. The verdict regarding future income loss is founded on a finding of a significant lasting vocational problem, again (according to Mr. Smith) a tacit assumption that the plaintiff is suffering from schizophrenia and the verdict merely records symptoms of that illness. It is therefore too remote, lacking any relation in law to the motor vehicle accident.

[8] Ms. Vinett accepts on behalf of the plaintiff that remoteness is a question of law to be determined by the trial judge. However she submits that the jury verdict rejected the defence theory that the plaintiff's problems stemmed from schizophrenia, a condition unrelated to and predating the motor vehicle accident without clear symptoms according to the defence. She submitted that the jury found in favour of the plaintiff's expert theory minus the psychoses. The verdict found that the plaintiff contracted a head injury involving lasting cognitive deficits in memory and thought processing, coupled with major depression and anxiety beyond normal expectations. The verdict actually is a finding that the physical and cognitive deficits and conditions arose directly from the brain injury inflicted by the collision by the Bridson vehicle with the car in front of it. Even if their finding of major depression implies psychosis, it is less commonly the result of a minor brain injury but it is a known result in a minority of cases. Therefore, Ms. Vinett rejected the suggestion that the verdict, in substance, is a finding of schizophrenia. There is also no similarity to *Mustapha*, where the plaintiff's psychiatric reaction to seeing flies in the water arose from a unique constellation of conditions purely his own.

¹ *Enge v. Trevis* 33 W.W.R. 577 (B.C.C.A.) at para. 12; *Mustapha* at para. 11.

Consequently, Ms. Vinett urged that the defendant's motion to declare the injuries and deficits found by the jury as too remote be dismissed.

[9] In my view, this case is quite different from that of *Mustapha* in legal principle as well as in fact. In *Mustapha*, the Supreme Court found that remoteness depends on two factors: (1) the degree of probability required to meet the reasonable foreseeability requirement and (2), whether the plaintiff is considered on an objective or subjective test. As to the former, the court followed *The Wagonmound (No. 1)* which established the principle of law that responsibility is determined by "the foresight of the reasonable (person)". Ancillary to that came the principle from *The Wagonmound (No. 2)* that the degree of probability which satisfies the reasonable foreseeability test is a "real risk, i.e. one which would occur to the mind of a reasonable man in the position of the defendant ..."

[10] On the question of objective or subjective approach, the Supreme Court followed what it regarded as a consistent principle in the duty of care analysis – it is an objective test: is it foreseeable that a person of ordinary fortitude would have sustained the kind of mental injuries suffered by this plaintiff?

[11] The only evidence in *Mustapha* related to the plaintiff's psychological reactions to the flies in the water, described by medical experts as "highly unusual" and "very individual". In this case, the evidence of Dr. Fulton, Dr. Van Reekum and Dr. Young was that the plaintiff sustained a mild traumatic brain injury. Dr. Waisman, on a documentary review, also accepted the diagnosis of brain injury. Dr. Fulton spoke to the direct causal relationship of Mr. Chinsang's cognitive deficits and adjustment disorder including depression and his partial disability to the motor vehicle accident. The vocational assessor Dr. Mihajlovic corroborated Dr. Fulton's and Dr. Van Reekum's opinions as to the negative effect on the plaintiff's employment disability. But Dr. Fulton also stated that while in most cases patients recover from mild brain trauma in relatively short order, a minority of patients in the order of ten to fifteen percent do not, and they go on to exhibit not only cognitive deficits but sometimes psychoses. Dr. Van Reekum stated that 40% of traumatic brain injured patients develop depression, some go on to major depression. Dr. Fulton said that the symptoms displayed by Mr. Chinsang on admission to Markham Stouffville Hospital show a striking similarity to individuals with a right hemisphere injury to their brain in psychoses and in lack of awareness of their own problems. It also disguises the nature of the injury to others because speech and language are not affected.

[12] Dr. Van Reekum spoke to "real risk" and the objective approach in stating that the mild brain injury caused by the collision manifested itself in the neuro-cognitive test results of Dr. Fulton, that the development of depression and chronic major depression typically sets in within 12 to 18 months of trauma (as it did here), and that the collision caused the depression which worsened into an ongoing Major Depressive Episode by 2003 that has remained untreated. MDE is a recognized mental illness defined in the diagnostic manual used by the psychiatric profession (DSM IV – TR). It is known that it can be caused by trauma, among other things, and is recognized as leading in some cases to extreme anxiety and psychoses when untreated. Dr. Van Reekum believes that that is what has occurred with Mr. Chinsang. The temporal sequence stressed by Dr. Van Reekum of the accident leading to cognitive deficits to depression to MDE

and psychosis was said by him to be typical of a traumatic brain injury but not typical of the onset of schizophrenia.

[13] Unlike *Mustapha*, in this case there is evidence from which I conclude, as did the jury, that a mild brain injury resulted directly from the collision – the most heavily damaged area of the motor vehicle was where the plaintiff was sitting. It left glass fragments embedded in his face and he was disoriented and confused. The jury accepted that the plaintiff’s minor brain injury was caused by the accident, together with cognitive deficits and the resulting partial disabilities and loss of competitive advantage in the job market. The jury clearly rejected the defence theory of non-accident-related schizophrenia. The finding that the head injury and cognitive deficits flowing from it is supported by evidence accepted by me as well as by the jury. The injuries and mental conditions and partial disability obviously found by the jury as caused by the April 12, 2001 collision are such that a person of ordinary fortitude would have a real risk of suffering the same or similar types of injuries from a collision involving similar head trauma.

[14] The *Enge* case is one where the court found on the expert evidence before it that the plaintiff’s reaction to the disfiguring scar (which was included in the damage award) was a result of her schizophrenic condition, not the motor vehicle accident. As the court put it at para. 27:

While there are cases in which a plaintiff has recovered damages for insanity caused directly by a defendant’s negligence, I have found no authority for the proposition that a wrong doer is liable for a victim’s irrational reaction to injuries resulting from the negligent act, when that reaction is caused by an extraneous mental disorder.

And at para. 36 in *Enge*, the court found that the plaintiff’s reaction to her injury resulted from her “extraneous mental disorder” (i.e. schizophrenia). *Enge* has no application to this case where the defence theory of schizophrenia was before the jury and was rejected by it.

[15] I find that the injuries found by the jury are not too remote. On the evidence before me, they meet the objective tests of “real risk” and “person of ordinary fortitude” set out in *Mustapha*. I should add that in so finding, I agree with the conclusion of Moore J. in *Fraser v. Haukioja* (2008) Carswell Ont. 4948. In Moore J.’s words, “it is sufficient if one can foresee in a general way the class or character of injury which occurred”. (para 227) The brain injury, cognitive deficits and resulting partial disability in this case were foreseeable. However, unlike *Fraser*, the extent and exact nature of the partial disability from the plaintiff’s right hemisphere brain injury, though unusual, is reasonably foreseeable as a real risk from the head trauma. This is therefore a stronger case than *Fraser*. The case before me has no resemblance to a unique reaction based on a highly individual constellation of psychological attributes such as that of *Mustapha* where no physical injury occurred at all.

[16] For these reasons, the defendant’s motion for a declaration of remoteness of damage is dismissed.

HOWDEN, J.

Released: December 17, 2008